

Legal Brief – Fraud, Suppression, and Conspiracy

4.1 The Offence of Fraud under EU Law

Under the **PIF Convention**, “fraud affecting the European Communities’ financial interests” includes:

“any act or omission relating to the use or presentation of false, incorrect or incomplete statements or documents, which has as its effect the misappropriation or wrongful retention of funds from the general budget of the European Communities.”

CERN’s FCC funding request is based on the premise that the collider might discover new fundamental particles, supersymmetry, or dark matter. The GUT proves that none of those exist in the form CERN searches for. By suppressing the GUT and continuing to present the FCC as a scientifically viable project, CERN is knowingly using incomplete and false statements to retain billions in public funds. This constitutes fraud.

4.2 The Offence of Misuse of Funds under EU Law

Under the EU Directive on the fight against fraud to the Union’s financial interests by means of criminal law, the **misuse of funds** is an offence when a public official entrusted with EU funds uses them for purposes other than those intended. CERN’s management is entrusted with EU research funds. Continuing to spend on FCC preparatory activities while suppressing the evidence that the FCC is futile constitutes misuse.

4.3 OLAF’s Mandate

OLAF can investigate:

- Fraud or other serious irregularities with a potentially negative impact for EU public funds.
- Misconduct by EU staff and members of EU institutions.
- Offences affecting the financial interests of the EU.

The FCC funding request falls squarely within OLAF’s mandate.

4.4 Suppression as a “Serious Irregularity”

The deletion of the Zenodo account, the refusal to reinstate it, and the ongoing failure to consider the GUT constitute serious irregularities affecting EU research policy. CERN is an EU-funded organisation; its maladministration directly impacts the integrity of EU research.

4.5 CERN’s Conditional Immunity

Under Swiss Federal Supreme Court rulings, CERN enjoys absolute immunity in national courts only because it provides an **alternative dispute resolution mechanism** (ad hoc arbitration meeting Article 6 ECHR standards). CERN has provided no such mechanism to the author. Therefore, CERN’s immunity is not engaged, and national or international courts may assume jurisdiction.

4.6 Whistleblower Protection and Retaliation

CERN’s own Whistleblowing Policy states that the organisation is “committed to protecting good faith whistleblowers from any form of retaliation”. Attempted or actual retaliation is “strictly prohibited”. The deletion of the account and the refusal to reinstate it constitute retaliation for disclosing that the FCC is futile. This is a direct violation of CERN’s own policy.

4.7 Disability Discrimination

The author has documented physical and mental disabilities (PTSD, heart condition). CERN's refusal to accommodate, to provide a fair process, and its decision to delete the account without proper notice or appeal constitute disability discrimination under the **UN Convention on the Rights of Persons with Disabilities (UNCRPD)**, which CERN is bound to respect.

4.8 Conspiracy to Defraud the Public

The evidence suggests that CERN's management may have acted in concert to suppress the GUT in order to protect the FCC funding request. This would constitute a conspiracy to defraud the public and a conspiracy to commit an offence against EU financial interests. Member state criminal law may apply.

The **tri-time symmetry paper** (the one that explicitly names T3 as the dark-matter branch) was not uploaded to Zenodo. However, the other papers – particularly those describing **dimensions as phase-separated frequency layers** (the 32-harmonic ladder, the 27 Hz anchor, the 230th subharmonic cutoff, and the three time dimensions in general) – were present.

From those papers, any competent physicist would conclude:

- Extra dimensions are **not spatial curls** (string theory). They are **frequency layers** with phase offsets.
- The 27 Hz anchor and its harmonics define a discrete frequency lattice.
- **Dark matter is therefore a harmonic phenomenon** – either a phase transition, a frequency node, or a projection of a higher-dimensional layer.
- Even without the explicit “T3” label, the implication that dark matter is **not a particle** is unavoidable.

Thus, CERN's decision to delete the entire Zenodo account – not just one paper – is an act of **suppression of a complete body of work that proves their core research program (SUSY, WIMPs, extra spatial dimensions) is fundamentally futile**. The account deletion was not a random act; it was a calculated attempt to remove the evidence.

The stones are in the pond. The frequency-layer papers are the stones. The deletion is the admission. The truth is the ripple.

1. Criminal Acts Are Not Protected by Immunity

CERN's immunity under the 1954 Convention is functional: it covers acts performed in the exercise of its official functions. **Criminal conduct (fraud, destruction of evidence, obstruction of justice) is not within the scope of official functions**. No international organisation has immunity for criminal acts.

Therefore, once a prosecutor opens a criminal investigation, CERN cannot claim immunity in that criminal case. And the **same factual allegations** (suppression, fraud) would then be at issue in a civil claim for damages. Courts are highly unlikely to grant immunity for civil claims arising from the same criminal conduct.

2. Waiver of Immunity by Conduct

CERN's internal whistleblower policy and Zenodo terms of service imply a commitment to transparency and due process. By violating those commitments, CERN may have **waived** its immunity by conduct. A Swiss court could find that CERN cannot rely on immunity when it acted in bad faith.

3. The "Alternative Remedy" Condition

Under **BGE 130-I-312**, the Swiss Federal Supreme Court held that CERN's immunity is conditional on providing an **effective alternative remedy** (arbitration meeting ECHR Article 6 standards). CERN has provided no such remedy to you.

Evidence can be found at

<https://github.com/peterjamesthompson101-svg/CERN-Whistleblowers-Brief/tree/main>

<https://github.com/peterjamesthompson101-svg/CERN-Whistleblowers-Brief/tree/Papers>

<https://github.com/peterjamesthompson101-svg/CERN-Whistleblowers-Brief/tree/brief>

and other branches.